STATE OF MICHIGAN JUDICIAL CIRCUIT COUNTY	COMPLAINT FOR DIVORCE WITH CHILDREN	CASE NO. and JUDGE

Court address **Court telephone no.**

Plaintiff's name	v	Defendant's name
Plaintiff's name before marriage		Defendant's name before marriage

Form MC 01 SUMMONS must be completed and filed with this form.

I state:

1. The plaintiff or defendant has resided at least 180 days in Michigan immediately before the filing of this complaint.

2. The plaintiff or defendant has resided in this county at least 10 days immediately before the filing of this complaint.

3. The marriage took place on _____ (Date) in _____ (Location) .

4. The plaintiff and defendant ☐ separated on _____ (Date) . ☐ still live together.

5. There has been a breakdown of the marriage relationship to the extent that the objects of matrimony have been destroyed and there remains no reasonable likelihood that the marriage can be preserved.

6. ☐ The plaintiff ☐ The defendant ☐ No party is pregnant.

7. The plaintiff and the defendant have minor children together. The complete name and age of each child is:

8. _____ (Plaintiff or defendant or both parties) is/are fit and proper to make major decisions regarding the minor child(ren) of the parties, and it is in the best interests of the child(ren) to award _____ (Type) legal custody of the child(ren) to _____ (Plaintiff or defendant or both parties) .

9. _____ (Plaintiff or defendant or both parties) is/are fit and proper to have care, custody, and control of the minor child(ren) of the parties, and it is in the best interests of the child(ren) to award _____ (Type) physical custody of the child(ren) to _____ (Plaintiff or defendant or both parties) .

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10. It is in the best interests of the child(ren) to award parenting time to _____ (Plaintiff or defendant or both parties) as follows:

11. The minor child(ren) need financial support, including health and hospitalization insurance, other medical support, and child care expenses, and child support and other expenses should be calculated and ordered according to the Michigan Child Support Formula.

12. ☐ a. The plaintiff and defendant did not acquire property or debts during the marriage.
    ☐ b. The plaintiff and defendant acquired property and/or debts during the marriage that are to be equitably divided between them.
    ☐ c. The plaintiff and defendant acquired property and/or debts during the marriage. The parties have reached an agreement regarding the division of property and/or debts.

13. ☐ The plaintiff does not need spousal support. **OR**
    ☐ The plaintiff needs spousal support and the defendant is able to provide spousal support. See attachment.

I REQUEST:

a. A judgment of divorce.

b. _____ (Plaintiff or defendant or both parties) be given _____ legal custody of the minor child(ren).

c. _____ (Plaintiff or defendant or both parties) be given _____ physical custody of the minor child(ren).

d. Parenting time as specified in this complaint.

e. Child support, including medical and child care expenses as calculated according to the Michigan Child Support Formula.

f. The parties be ordered to provide health and hospitalization insurance for the minor child(ren) and to pay medical, dental, orthodontic, and hospital expenses not covered by insurance, both permanently and while this action is pending.

☐ g. An equitable division of property and debts.
Note: Property may include real estate, pensions, insurance, retirement accounts, and investment accounts, among others.

h. An equitable division of the costs of this action.

☐ i. My last name be changed to _____ .

j. Any other relief that the court deems just and equitable.

I declare under the penalties of perjury that this complaint has been examined by me and that its contents are true to the best of my information, knowledge, and belief.

_____ Date

_____ Plaintiff signature